

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505757	LIZARRAGA VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

PROOF OF SERVICE: Proper

SUSTAINED *with leave* to amend as to the first, third, and sixth causes of action.

OVERRULE the demurrer as to the second and fourth causes of action.

SUSTAIN *without leave* to amend as to the fifth and seventh causes of action.

Jaime Lizarraga, Jr. ("Plaintiff") was employed by the County of Riverside ("Defendant") as an Accounting Technician I. Plaintiff contends that in February 2024, he observed that he, a Hispanic man, was assigned a heavier workload than his Caucasian female colleagues. He alleges that when he asked his colleagues for assistance, his supervisor, Keri Banes ("Banes"), would yell at him. He contends she micromanaged him, frequently yelled at him, bombarded him with emails, undermined his work ethic, tarnished his reputation, demeaned him, insulted him, threatened him, and used an offensive manner towards him. He contends that this was all done due to his ethnicity and gender. He alleges his colleagues made inappropriate sexual comments. He asserts that Banes on one occasion ridiculed the way he spoke and the topics he attempted to discuss with his colleagues. She also allegedly asked him invasive questions about his marital status, health of his intimate relationship, and number of children he had. He filed a formal complaint with County on September 25, 2024. He contends that after this complaint was filed, he was terminated on November 18, 2024, for no reason.

The operative pleading is the First Amended Complaint ("FAC"). It asserts the following causes of action: (1) discrimination on the basis of sex, gender, race, ethnicity, ancestry, color, and/or national origin; (2) hostile work environment harassment on the basis of sex, gender, race, ethnicity, ancestry, color, and/or national origin; (3) retaliation for engaging in protected activity; (4) failure to prevent discrimination, harassment, or retaliation; (5) negligent hiring, supervision, and retention; (6) whistleblower retaliation; and (7) intentional infliction of emotional distress.

County contends that all seven causes of action fail as to it. It asserts the first cause of action fails to state facts sufficient to constitute a cause of action and the FAC is filled with vague allegations that do not support an adverse employment action based on sex, gender, race, ethnicity, ancestry, color, or national origin. It contends the first and second causes of action improperly try to combine claims into one cause of action. It asserts the second cause of action does not demonstrate that Plaintiff was subject to unwelcome harassment or that he was subject to severe and pervasive conduct. County argues the third cause of action fails because it does not set forth facts establishing an adverse action or a causal connection. The fourth cause of action allegedly fails because it is based on the first, second, and third causes of action and these claims have not been sufficiently alleged. The fifth and seventh causes of action are allegedly

insufficient because they do not identify any statutory basis. County asserts that the seventh cause of action fails because it is based on conclusory allegations.

In opposition, Plaintiff asserts that he has adequately alleged all of his causes of action. He asserts that if the court disagrees, leave to amend should be provided.

In reply, County reasserts the arguments set forth in the moving papers.

The parties **met and conferred** by Teams Meeting (video conference). (Sarah A. Swanson's Declaration, ¶ 5.) This appears to meet the meet and confer requirements under CCP § 430.41(a)(3)(B).

First Cause of Action for Discrimination on the Bases of Sex Gender, Race, Ethnicity, Ancestry, Color, and/or National Origin: Government Code § 12940(a) makes it unlawful "[f]or an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, reproductive health decision making, medical condition, . . . sex, gender, . . . status of any person, . . . to discriminate against the person in compensation or in terms, conditions, or privileges of employment." A claim for discrimination under FEHA requires: (1) the plaintiff is a member of a protected class; (2) they were qualified for her position; (3) they suffered an adverse employment action; and (4) the adverse employment action occurred due to the plaintiff's protected class. (*Reeves v. MV Transportation, Inc.* (2010) 186 Cal.App.4th 666, 673.) FEHA is a statutory cause of action. Statutory causes of action must be alleged with particularity. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.) "Thus, 'to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.'" (*Id.*)

County argues that this cause of action fails because the vague facts do not show an adverse employment action or a connection between the adverse employment action and a protected class. Plaintiff has added more factual allegations in the FAC. However, there still appears to be an issue connecting his protected class to his adverse employment action. The adverse employment action in the FAC is his termination. This is the only adverse employment specifically identified as the first cause of action. (FAC, ¶ 24.) The FAC alleges that he was terminated for making complaints about unfair and offensive treatment. (FAC ¶ 15.) Based on this, the adverse employment action appears to have occurred because of his complaints, not his protected classes, which would go towards a retaliation claim. An adverse employment action is not limited to termination. It pertains to actions that adversely and materially affects an employee's job performance or opportunity for advancement. (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1161-1162.) Plaintiff alleges that he had a heavier workload than his female co-workers. Allegations that this resulted in him working more hours for the same pay as his female co-workers or substantially impacted the quality of his work would be sufficient to allege an adverse employment action. Allegations that he was passed up for promotions or assignments because of gender or sex would also be sufficient to allege an adverse employment action. Since he has not yet connected his protected class to an adverse employment action, the demurrer should be sustained to this cause of action with leave to amend.

County also takes issue with this cause of action and the second because they identify several different protected classes. It argues that by doing this, Plaintiff is improperly mixing causes of action. While there are separate protected classes identified, the first cause of action is asserting only a discrimination cause of action, and the second cause of action is only asserting a sexual harassment cause of action. As such, it does not appear that separate causes of action are being pursued in one cause of action. This argument lacks merit.

Second Cause of Action Hostile Work Environment Harassment on the Bases of Sex, Gender, Race, Ethnicity, Ancestry, Color, and/or National Origin: A cause of action for harassment under FEHA requires the following elements: (1) the plaintiff is a member of a protected class, (2) plaintiff was subject to harassment, (3) the harassment was due to plaintiff's protected characteristic, (4) the harassment unreasonably interfered with work by creating an intimidating, hostile, or offensive work condition, and (5) the defendant is liable for the harassment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.) "Sexual harassment law in California requires an employee to prove 'severe or pervasive' harassment." (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 878. Before legislative changes in 2019, this was a very high bar for a plaintiff to meet. (*Id.*) Government Code § 12923 clarifies the existing law and states that one incident of harassment can be sufficient to create a hostile work environment, if the harassing conduct unreasonably interferes with a plaintiff's work performance or creates an intimidating, hostile, or offensive environment. In *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 628-635, the California Supreme Court found that one instance of using a racially charged word like the N-word is sufficient to give rise to a triable issue of material fact on summary judgment as to whether the conduct was severe and pervasive. An employer is strictly liable for a supervisor's sexual harassment. (*Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1420.)

County contends that this cause of action fails because the conduct at issue is not severe or pervasive and there are insufficient factual allegations to support that the conduct was based on protected category. The FAC appears to sufficiently allege sexual harassment. The pleading now alleges that Plaintiff's supervisor told him that if his finance was not doing something right, she could do him right - implying sexual acts; would tell Plaintiff to sit closer to her during meetings; shook her breast at him while dancing multiple times; whispered she loved him; told Plaintiff that he should take her out for Valentines Day and buy her presents; impliedly asked him about the size of his penis; a co-worker in front of their supervisor put her hands below Plaintiff's belt and tucked in his shirt for him; and his colleagues made sexual innuendos about penis size in front of their supervisor. (FAC, ¶¶ 14.b.-j.) These allegations are sufficient to allege both severe and pervasive conduct based on sex. As such, the demurrer should be overruled as to this cause of action.

Third Cause of Action for Retaliation for Engaging in Protected Activity: To establish a retaliation claim under FEHA, a plaintiff must show that (1) she engaged in a protected activity; (2) her employer subjected her to an adverse employment action; and (3) there is a causal link between the two. (*Yanowitz v L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

As discussed above, statutory claims must be alleged with particularity. (*Gates, supra*, 32 Cal.App.4th at 493-494.) The prior demurrer was sustained because the allegations in this cause of action were too generically alleged. Plaintiff has made no changes to this cause of action. This cause of action still does not allege what conduct by Plaintiff the claim is based on. (Complaint, ¶¶ 37-40.) It is unclear what protected activity forms the basis of this claim. It generically alleges that Plaintiff sought “to exercise rights guaranteed under FEHA, and/or opposing defendants’ failure to provide such rights” (FAC, ¶ 38.) It is unclear what actions are set forth in the general allegation’s sections of the FAC form the basis of this cause of action. As such, the demurrer should be sustained with leave to amend as to this cause of action.

Fourth Cause of Action for Failure to Prevent Discrimination, Harassment, or Retaliation: Under Government Code § 12940(k), it is unlawful for an employer to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring. “It creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages.” (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1313.) If a plaintiff’s claims for harassment, retaliation, and discrimination fail, then does her claims for failure to prevent harassment, retaliation, and discrimination. (*Id.* at 1314-1317.)

County argues that this cause of action fails because it is dependent on the first, second, and third causes of action, which fail. As discussed, the second cause of action has been sufficiently alleged. Due to this, the fourth cause of action does not fail. The demurrer should be overruled as to this cause of action.

Fifth Cause of Action for Negligent Hiring, Supervision, and Retention: An employer can be held liable for negligent hiring of an employee, if it was aware or should have been aware that hiring the employee created a particular risk or hazard and that particular risk or harm materializes. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.)

Under the California Tort Claims Act (“Act”) (Government Code §§ 810, et seq.), government tort liability must be based on a statute. (*Michael J. v. Los Angeles County Dept. of Adoption* (1988) 201 Cal.App.3d 859, 866.) The Act specifically states: “[e]xcept as otherwise provided by statute: (a) a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Government Code § 815.) “In view of the fact that tort causes of action against public entities are now based on statute, the general rules that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Susman v. Los Angeles* (1969) 269 Cal.App.2d 803, 809.) “[A] direct claim against a government entity asserting negligent hiring and supervision, when not grounded in the breach of a

statutorily imposed duty owed by the entity to the injury party, may not be maintained.” (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256.)

County contends this cause of action fails because it does not identify a statutory basis for the claim. This assertion is correct. Plaintiff indicates in his opposition that this cause of action will be dismissed. It has not. As such, the demurrer should be sustained without leave to amend as to this cause of action.

Sixth Cause of Action for Whistleblower Retaliation: This cause of action is based on Labor Code § 1102.5(b) and (c). Labor Code § 1102.5(b) prohibits an employer or anyone acting on behalf of the employer from retaliating “against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, ... if the employee has reasonable cause to believe that the information discloses a violate” of law. (Labor Code § 1102.5(b).) An employee engages in activity protected by the statute under Labor Code § 1102.5(b), when the employee discloses “reasonably based suspicions” of illegal activity. (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 592.) Labor Code § 1102.5(c) prohibits an employer from retaliating against an employee that refuses to participate in an activity that would result in a violation of law or regulation. (Labor Code § 1102.5(c).)

This cause of action is based on statute. As such, it must be alleged with particularity. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.) The prior demurrer was sustained to this cause of action because it did not meet this pleading requirement. No changes have been made by Plaintiff to this cause of action. This cause of action still generically contends that Plaintiff raised complaints of conduct he believed to be illegal. Plaintiff does not allege what conduct or violations he believed he was complaining about. It just generically states that “Plaintiff raised complaints of actual and/or potential illegality . . .” (FAC, ¶ 54.) As such, the demurrer should be sustained as to this cause of action with leave to amend.

Seventh Cause of Action for Intentional Infliction of Emotional Distress: Intentional infliction of emotional distress requires: (1) outrageous conduct, (2) intent to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional distress, and (4) accrual and proximate causation. (*Stoiber v. Honey* (1980) 101 Cal.App.3d 903, 921.) Behavior is outrageous if it exceeds all bounds typically tolerated by decent society. (*Id.*) There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.) Demotions, failing to promote, failing to transfer, terminating, and failing to provide adequate work assignments all constitute personnel management activity and do not give rise to an intentional infliction of emotional distress cause of action. (*Janken v. GN Hughes Electronics* (1996) 46 Cal.App.4th 55, 79-80.) “A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.” (*Id.*)

This is a tort claim. As discussed above, a tort against the County must be based on a statute and alleged with particularity. This cause of action does not set forth any statutory basis that a claim for intentional infliction of emotional distress may be brought against County. Plaintiff indicates in his opposition that he will be dismissing this cause of action. This has not occurred. As such, the demurrer is sustained as to this cause of action without leave to amend.